

SOLICITATION/CONTRACT/ORDER FOR COMMERCIAL PRODUCTS AND COMMERCIAL SERVICES

NOTE: OFFEROR TO COMPLETE BLOCKS 12, 17, 23, 24, AND 30.

1. REQUISITION NUMBER			PAGE 1 OF		
2. CONTRACT NUMBER	3. AWARD/EFFECTIVE DATE	4. ORDER NUMBER	5. SOLICITATION NUMBER	6. SOLICITATION ISSUE DATE	
7. FOR SOLICITATION INFORMATION CALL:			a. NAME		b. TELEPHONE NUMBER (<i>No collect calls</i>)
			8. OFFER DUE DATE/ LOCAL TIME		
9. ISSUED BY CODE			10. THIS ACQUISITION IS ☐ UNRESTRICTED OR ☐ SET ASIDE: % FOR: ☐ SMALL BUSINESS ☐ WOMEN-OWNED SMALL BUSINESS (WOSB) NORTH AMERICAN INDUSTRY CLASSIFICATION STANDARD (NAICS): ☐ HUBZONE SMALL BUSINESS ☐ ECONOMICALLY DISADVANTAGED ☐ DISADVANTAGED ☐ SERVICE-DISABLED ☐ WOMEN-OWNED SMALL BUSINESS (EDWOSB) SIZE STANDARD: ☐ VETERAN-OWNED SMALL BUSINESS (SDVOSB) ☐ 8(A)		
11. DELIVERY FOR FREE ON BOARD (FOB) DESTINATION UNLESS BLOCK IS MARKED ☐ SEE SCHEDULE		12. DISCOUNT TERMS		13a. THIS CONTRACT IS A ☐ RATED ORDER UNDER THE DEFENSE PRIORITIES AND ALLOCATIONS SYSTEM - DPAS (15 CFR 700)	
15. DELIVER TO CODE		13b. RATING			
		14. METHOD OF SOLICITATION REQUEST ☐ REQUEST ☐ INVITATION ☐ FOR FOR QUOTE (RFQ) FOR BID (IFB) PROPOSAL (RFP)			
17a. CONTRACTOR/ OFFEROR CODE FACILITY CODE			16. ADMINISTERED BY CODE		
			18a. PAYMENT WILL BE MADE BY CODE		
TELEPHONE NUMBER			18b. SUBMIT INVOICES TO ADDRESS SHOWN IN BLOCK 18a UNLESS BLOCK BELOW IS CHECKED ☐ SEE ADDENDUM		
17b. CHECK IF REMITTANCE IS DIFFERENT AND PUT SUCH ADDRESS IN OFFER ☐			18b. SUBMIT INVOICES TO ADDRESS SHOWN IN BLOCK 18a UNLESS BLOCK BELOW IS CHECKED ☐ SEE ADDENDUM		
19. ITEM NUMBER	20. SCHEDULE OF SUPPLIES/SERVICES		21. QUANTITY	22. UNIT	23. UNIT PRICE
(Use Reverse and/or Attach Additional Sheets as Necessary)					
25. ACCOUNTING AND APPROPRIATION DATA				26. TOTAL AWARD AMOUNT (<i>For Government Use Only</i>)	
☐ 27a. SOLICITATION INCORPORATES BY REFERENCE (FEDERAL ACQUISITION REGULATION) FAR 52.212-1, 52.212-4. FAR 52.212-3 AND 52.212-5 ARE ATTACHED. ADDENDA ☐ 27b. CONTRACT/PURCHASE ORDER INCORPORATES BY REFERENCE FAR 52.212-4. FAR 52.212-5 IS ATTACHED. ADDENDA ☐ 28. CONTRACTOR IS REQUIRED TO SIGN THIS DOCUMENT AND RETURN COPIES TO ISSUING OFFICE. CONTRACTOR AGREES TO FURNISH AND DELIVER ALL ITEMS SET FORTH OR OTHERWISE IDENTIFIED ABOVE AND ON ANY ADDITIONAL SHEETS SUBJECT TO THE TERMS AND CONDITIONS SPECIFIED ☐ 29. AWARD OF CONTRACT: REFERENCE OFFER DATED . YOUR OFFER ON SOLICITATION (BLOCK 5), INCLUDING ANY ADDITIONS OR CHANGES WHICH ARE SET FORTH HEREIN, IS ACCEPTED AS TO ITEMS:					
30a. SIGNATURE OF OFFEROR/CONTRACTOR			31a. UNITED STATES OF AMERICA (<i>SIGNATURE OF CONTRACTING OFFICER</i>)		
30b. NAME AND TITLE OF SIGNER (<i>Type or print</i>)		30c. DATE SIGNED	31b. NAME OF CONTRACTING OFFICER (<i>Type or print</i>)		31c. DATE SIGNED

Solicitation/Contract Form Continuation

Instrument Name: QRP Telehandler

Combined Synopsis/Solicitation

Requirement Title: QRO Telehandler, Springfield IL

Solicitation Number: W91SMC-26-Q-A926

Response Deadline RFIs: 8 May 2026 by 11:00 am CST

Response Deadline Quotes: 13 May 2026 by 11:00 am CST

PURPOSE:

This is a combined synopsis/solicitation for commercial supply prepared in accordance with the format in subpart 12.6, as supplemented with additional information included in this notice. This announcement constitutes the only solicitation; proposals are being requested and a written solicitation will not be issued.

This Combined Synopsis/Solicitation is being issued as a(n) Request for Quote (RFQ). The solicitation document and incorporated provisions and clauses are those in effect through Federal Acquisition Circular 2024-01.

The North American Industrial Classification System (NAICS) code for this procurement is 333924, Industrial Truck, Tractor, Trailer, and Stacker Machinery Manufacturing. DFARS Clause 252.225-7001 "Buy American and Balance of Payment Program" is included in this solicitation.

This requirement is solicited as Full and Open, no set-aside is being utilized for this requirement.

DESCRIPTION OF ITEMS/SERVICES:

Procurement of one (1) off-road diesel telehandler in accordance with the specifications in the Statement of Work (SOW).

PLACE OF DELIVERY/PERFORMANCE/ACCEPTANCE/FOB POINT:

Camp Lincoln: 1301 N. MacArthur Blvd, Springfield, IL 62702

INSTRUCTIONS TO OFFERORS:

1. A Full and Open, single Firm Fixed Price (FFP), contract is anticipated to be awarded to the business concern through the procedures of Federal Acquisition Regulation (FAR) Subpart 13.5. The quotations shall be evaluated on the basis of Lowest Price Technically Acceptable (LPTA). The NAICS for this requirement is 333924. Responders should include all documents and information requested submitted in accordance with the instructions herein.
2. Quotes shall be submitted prior to the closing date and time of this posting. Send quotes to contract specialist: Lawrence Romang at lawrence.j.romang.civ@army.mil and contracting officer: Donald Piper at donald.g.piper6.mil@army.mil. Contracting Officer reserves the right to accept late quotes if in the best interest of the government.
3. All questions regarding this Request for Quote (RFQ) shall be submitted in writing via email to Lawrence Romang at lawrence.j.romang.civ@army.mil and Donald Piper at donald.g.piper6.mil@army.mil. The government is not obligated to provide responses to questions submitted to offerors.

GENERAL INSTRUCTIONS:

1. The Government will award contract resulting from this solicitation to the responsible offeror whose offer conforming to the solicitation will be most advantageous to the Government. LPTA shall be used to evaluate technically acceptable offers in accordance with the "best value" definition outlined in FAR 2.101.
2. The Offer. The submission of the documentation specified below will constitute the offeror's acceptance of the terms and conditions of the RFP, concurrence with the Statement of Work (SOW).
3. It is the Government's intention to award without discussions. Offerors are encouraged to present their best proposal in their initial submission. The Government reserves the right to hold discussions.
4. All Quotes shall clearly specify Make and Model of the forklifts to be determined Technically Acceptable.

PROPOSAL FORMAT:

Electronic Documents: All electronic documents must NOT be "secured", "locked", or otherwise inaccessible. Submitter risks rejection if documents prove inhospitable to viewing and evaluation. Utilize standard Microsoft or Adobe formats, and net file size of all documents should be less than 10MB.

Proposal Format. Offerors shall provide a complete description of their technical approach to the SOW. Proposals shall consist of the following:

Technical Proposal (20-page limit) to include Specification Sheets

Technical - Quality Assurance Program

Pricing (no page limit)

Technical Proposal: In the technical proposal the Government will evaluate the Offeror's understanding of the requirement relative to the SOW. Technical proposal information will be streamlined.

Pricing: The Government will evaluate the offeror's price that are graded as technically acceptable. Offeror's pricing will be valid for 60 days after receipt of proposal. This part of the proposal shall include details for all resources required to accomplish this requirement.

BASES FOR AWARD

1. Any award made will be based on the most advantageous (FAR 52.212-2 Evaluation Commercial Items) to the Government, price and technical acceptability considered.
2. The Government will award a contract resulting from this RFQ if the offerors proposal conforms to the RFQ, the offerors proposal conforms to the attached SOW, the offeror is found responsible, and if the final price is determined fair and reasonable in accordance with FAR subsection 13.106-3.

Evaluation Criteria. This evaluation will be conducted using the LPTA process, and the evaluation criteria for this award will be based on the following factors:

Factor 1: Technical Performance

Factor 2: Price

Factor 1 - Technical Performance: The contractor shall be responsible for ensuring their proposal fully outlines the capability to adhere to the delivery deadline, quantities required, and specifications listed in the SOW. Technical performance shall be found to be either acceptable or unacceptable based on the answers to the following questions:

Can the vendor meet all the specifications outlined in part 5 of the SOW?

Has the vendor provided a specification sheet for telehandler quoted?

Has the vendor clearly identified which make and model are being quoted?

Can the vendor deliver within the time specified in part 3 of the SOW?

The government will determine the vendor to be Technically Acceptable only if all answers to the above question is "Yes."

Factor 2 - Price: The government will evaluate all technically acceptable offerors' prices.

In terms of "price reasonableness" the Government will focus on whether the price is too high or too low to be considered fair and reasonable. In terms of "completeness" the Government will focus on whether the price appears to cover all of the work identified in the SOW. In terms of "balance" the Government will focus on whether pricing is consistent with historical contract information and market research.

Pricing will not be scored or rated and will not be considered unless the proposals technical acceptability in factor 1 are graded as acceptable.

[End]

STATEMENT OF WORK (SOW)

ILLINOIS ARMY NATIONAL GUARD (ILARNG) Qualified Recycling Program

TITLE: QRP Telehandler

1. **PURPOSE.** The Illinois Army National Guard's Qualified Recycling Program (QRP) was established to execute a cost-effective waste prevention and qualified recycling program to reduce the volume of non-hazardous solid waste and impact of activities on the environment. To perform its mission, the QRP requires material handling equipment (MHE) to consolidate, load, and transport solid waste to recycling facilities.

2. **SCOPE OF WORK.** Procurement of one (1) off-road diesel telehandler in accordance with the specifications below to include delivery and warranty.

3. **DELIVERY LOCATION AND DELIVERY DATE.** This equipment shall be delivered to the Illinois National Guard Warehouse located at Camp Lincoln, Springfield IL.

Equipment shall be delivered no later than August 1st, 2026.

3.1 Shipping label shall be:

UNITED STATES PROPERTY AND FISCAL OFFICE (USPFO)

Mr. Theordore Duckett

1301 N MacArthur BLVD Springfield, IL 62702

4. **SPECIFICATIONS REQUIRED.**

4.1 Telehandler

One (1) off-road telehandler with the following specifications. A specifications sheet shall be included with your quote to show that the product is equal or greater than the quality and specifications below:

- Power: Diesel
- Operation: Seated
- Rated Capacity: 6,000 - 9,000 lbs.
- Tire Type: Pneumatic Off-Road Capable
- Steering: Power Steering; Operator selectable 4-wheel circle, 4-wheel crab, 2-wheel front
- Drive: 4WD Capable
- Steering: Power Steering; Operator selectable 4-wheel circle, 4-wheel crab, 2-wheel front
- Minimum lift height: 40 feet
- Minimum forward reach: 28 feet
- Frame leveling: 10 degrees
- The carriage shall be equipped with side-shift and a side-shifting fork positioner
- Carriage: Load backrest extension
- Minimum 47" forks
- Enclosed Operator Cabin with ROPS
- Enclosed Cabin with Heat and Air Conditioning
- Joystick control system for hydraulics
- Mirrors: LH & RH exterior
- Non-cinch seat belt with start interlock
- Basic work light package
- Basic brake/tail/back-up light package
- Audible alarm - reverse operation

- Fire extinguisher
- Minimum 12-month full machine warranty
- Minimum 24-month/2,000-hour powertrain warranty shall be provided.

(suggested product: JLG 742)

END

*** END OF NARRATIVE ***

Continuation of Supplies or Services and Prices/Costs

Additional Information/Notes

Item	Supplies/Service	Quantity	Unit	Unit Price	Amount
0002	Telehandler - One (1) off-road diesel telehandler Additional Product Identification Assigned by the Manufacturer: 1 Claimant Program Code: C9E Pricing Arrangement: Firm Fixed Price	1	Each		

Continuation of Description

Requirements

QRP Telehandler

0002

Product Service Code : 3930

Continuation of Inspection and Acceptance

Overall Contract Inspection/Acceptance Locations

0002	Inspection and Acceptance Location Both Destination Instructions: Contact POC for details. Details will be given out after award. DoDAAC: W56ESR CountryCode: USA W8AT ILARNG ELEMENT, JF HQ 1301 N MACARTHUR BLVD, SPRINGFIELD IL 62702-2399 SPRINGFIELD, IL 62702-2399 UNITED STATES MAJ John Tracy
------	---

Continuation of Deliveries or Performance

0002	Delivery Schedule From date of lead time event to delivery 180 Calendar Days Date of Award Quantity 1 Each Address and POC Ship To DoDAAC: W56ESR CountryCode: USA W8AT ILARNG ELEMENT, JF HQ 1301 N MACARTHUR BLVD, SPRINGFIELD IL 62702-2399 SPRINGFIELD, IL 62702-2399 UNITED STATES Special Handling/Notes FoB Details Party to Pay Transportation Cost: Contractor Point Type: Destination
------	---

Contract Clauses

FAR Clauses Incorporated by Reference

Number	Title	Effective Date	Alternate Deviation	Variation Effective Date
52.203-3	Gratuities.	1984-04		
52.203-6	Restrictions on Subcontractor Sales to the Government.	2020-06		
52.203-6	Restrictions on Subcontractor Sales to the Government. (Alternate I)	2020-06		
52.203-19	Prohibition on Requiring Certain Internal Confidentiality Agreements or Statements.	2017-01		
52.204-13	System for Award Management-Maintenance. (Deviation)	2026-02		
52.209-6	Protecting the Government's Interest When Subcontracting With Contractors Debarred, Suspended, Proposed for Debarment, or Voluntarily Excluded. (Deviation)	2026-02		
52.212-4	Terms and Conditions-Commercial Products and Commercial Services. (Deviation)	2026-02		
52.219-8	Utilization of Small Business Concerns. (Deviation)	2026-02		
52.222-19	Child Labor-Cooperation with Authorities and Remedies.	2026-02		

(Deviation)

52.222-35	Equal Opportunity for Veterans. (Deviation)	2026-02
52.222-36	Equal Opportunity for Workers with Disabilities. (Deviation)	2026-02
52.222-37	Employment Reports on Veterans. (Deviation)	2026-02
52.222-40	Notification of Employee Rights Under the National Labor Relations Act. (Deviation)	2026-02
52.222-50	Combating Trafficking in Persons. (Deviation)	2026-02
52.226-8	Encouraging Contractor Policies to Ban Text Messaging While Driving.	2024-05
52.229-12	Tax on Certain Foreign Procurements.	2021-02
52.232-33	Payment by Electronic Funds Transfer-System for Award Management.	2018-10
52.232-40	Providing Accelerated Payments to Small Business Subcontractors.	2023-03
52.233-3	Protest after Award. (Deviation)	2026-02
52.233-4	Applicable Law for Breach of Contract Claim. (Deviation)	2026-02

DFARS Clauses Incorporated by Reference

Number	Title	Effective Date	Alternate Deviation	Variation Effective Date
252.203-7000	Requirements Relating to Compensation of Former DoD Officials.	2011-09		
252.203-7002	Requirement to Inform Employees of Whistleblower Rights.	2022-12		
252.204-7012	Safeguarding Covered Defense Information and Cyber Incident Reporting.	2024-05		
252.204-7018	Prohibition on the Acquisition of Covered Defense Telecommunications Equipment or Services.	2023-01		
252.223-7008	Prohibition of Hexavalent Chromium.	2023-01		
252.225-7001	Buy American and Balance of Payments Program.	2024-02		
252.225-7012	Preference for Certain Domestic Commodities.	2022-04		
252.225-7052	Restriction on the Acquisition of Certain Magnets, Tantalum, and Tungsten.	2024-05		
252.225-7056	Prohibition Regarding Business Operations with the Maduro Regime.	2023-01		

252.225-7060	Prohibition on Certain Procurements from the Xinjiang Uyghur Autonomous Region.	2023-06
252.226-7001	Utilization of Indian Organizations, Indian-Owned Economic Enterprises, and Native Hawaiian Small Business Concerns.	2023-01
252.232-7003	Electronic Submission of Payment Requests and Receiving Reports.	2018-12
252.232-7010	Levies on Contract Payments.	2006-12
252.243-7002	Requests for Equitable Adjustment.	2022-12
252.247-7023	Transportation of Supplies by Sea.	2024-10

DFARS Clauses Incorporated by Full Text

Number	Title	Effective Date	Alternate Deviation	Variation Effective Date
252.232-7006	Wide Area WorkFlow Payment Instructions.	2023-01		

WIDE AREA WORKFLOW PAYMENT INSTRUCTIONS (JAN 2023)

(a) Definitions. As used in this clause-

"Department of Defense Activity Address Code (DoDAAC)" is a six position code that uniquely identifies a unit, activity, or organization.

"Document type" means the type of payment request or receiving report available for creation in Wide Area WorkFlow (WAWF).

"Local processing office (LPO)" is the office responsible for payment certification when payment certification is done external to the entitlement system.

"Payment request" and "receiving report" are defined in the clause at 252.232-7003, Electronic Submission of Payment Requests and Receiving Reports.

(b) Electronic invoicing. The WAWF system provides the method to electronically process vendor payment requests and receiving reports, as authorized by Defense Federal Acquisition Regulation Supplement (DFARS) 252.232-7003, Electronic Submission of Payment Requests and Receiving Reports.

(c) WAWF access. To access WAWF, the Contractor shall-

(1) Have a designated electronic business point of contact in the System for Award Management at <https://www.sam.gov>; and

(2) Be registered to use WAWF at <https://wawf.eb.mil/> following the step-by-step procedures for self-registration available at this web site.

(d) WAWF training. The Contractor should follow the training instructions of the WAWF Web-Based Training Course and use the Practice Training Site before submitting payment requests through WAWF. Both can be accessed by selecting the "Web Based Training" link on the WAWF home page at <https://wawf.eb.mil/>

(e) WAWF methods of document submission. Document submissions may be via web entry, Electronic Data Interchange, or File Transfer Protocol.

(f) WAWF payment instructions. The Contractor shall use the following information when submitting payment requests and receiving reports in WAWF for this contract or task or delivery order:

(1) Document type. The Contractor shall submit payment requests using the following document type(s):

(i) For cost-type line items, including labor-hour or time-and-materials, submit a cost voucher.

(ii) For fixed price line items-

(A) That require shipment of a deliverable, submit the invoice and receiving report specified by the Contracting Officer.

Combo

(Contracting Officer: Insert applicable invoice and receiving report document type(s) for fixed price line items that require shipment of a deliverable.)

(B) For services that do not require shipment of a deliverable, submit either the Invoice 2in1, which meets the requirements for the invoice and receiving report, or the applicable invoice and receiving report, as specified by the Contracting Officer.

Combo

(Contracting Officer: Insert either "Invoice 2in1" or the applicable invoice and receiving report document type(s) for fixed price line items for services.)

(iii) For customary progress payments based on costs incurred, submit a progress payment request.

(iv) For performance based payments, submit a performance based payment request.

(v) For commercial financing, submit a commercial financing request.

(2)) Fast Pay requests are only permitted when Federal Acquisition Regulation (FAR) 52.213-1 is included in the contract.

[Note: The Contractor may use a WAWF "combo" document type to create some combinations of invoice and receiving report in one step.]

(3) Document routing. The Contractor shall use the information in the Routing Data Table below only to fill in applicable fields in WAWF when creating payment requests and receiving reports in the system.

Routing Data Table*

Field Name in WAWF	Data to be entered in WAWF
Pay Official DoDAAC	HQ0670
Issue By DoDAAC	W91SMC
Admin DoDAAC	W91SMC
Inspect By DoDAAC	W56ESR
Ship To Code	W56ESR
Ship From Code	_____
Mark For Code	_____
Service Approver (DoDAAC)	_____
Service Acceptor (DoDAAC)	W56ESR
Accept at Other DoDAAC	_____
LPO DoDAAC	W56ESR
DCAA Auditor DoDAAC	_____
Other DoDAAC(s)	_____

(*Contracting Officer: Insert applicable DoDAAC information. If multiple ship to/acceptance locations apply, insert "See Schedule" or "Not applicable.")

(**Contracting Officer: If the contract provides for progress payments or performance-based payments, insert the DoDAAC for the contract administration office assigned the functions under FAR 42.302(a)(13).)

(4) Payment request. The Contractor shall ensure a payment request includes documentation appropriate to the type of payment request in accordance with the payment clause, contract financing clause, or Federal Acquisition Regulation 52.216-7, Allowable Cost and Payment, as applicable.

(5) Receiving report. The Contractor shall ensure a receiving report meets the requirements of DFARS Appendix F.

(g) WAWF point of contact.

(1) The Contractor may obtain clarification regarding invoicing in WAWF from the following contracting activity's WAWF point of contact.

ng.il.ilarng.list.j8-vendor-pay@mail.mil

(Contracting Officer: Insert applicable information or "Not applicable.")

(2) Contact the WAWF helpdesk at 866-618-5988, if assistance is needed.

(End of clause)

Addendum to Contract Clauses

FAR Clauses Incorporated by Reference

Number	Title	Effective Date	Alternate Deviation	Variation Effective Date
52.209-10	Prohibition on Contracting With Inverted Domestic Corporations. (Deviation)	2026-02		
52.213-4	Terms and Conditions-Simplified Acquisitions (Noncommercial). (Deviation)	2026-02		
52.222-3	Convict Labor. (Deviation)	2026-02		
52.223-23	Sustainable Products. (Deviation)	2026-02		
52.232-18	Availability of Funds.	1984-04		
52.232-39	Unenforceability of Unauthorized Obligations.	2013-06		
52.240-91	Security Prohibitions and Exclusions. (Deviation)	2026-02		
52.244-6	Subcontracts for Commercial Products and Commercial Services. (Deviation)	2026-02		

DFARS Clauses Incorporated by Reference

Number	Title	Effective Date	Alternate Deviation	Variation Effective Date
--------	-------	----------------	---------------------	--------------------------

252.204-7003	Control of Government Personnel Work Product.	1992-04
--------------	--	---------

Solicitation Provisions

FAR Provisions Incorporated by Reference

Number	Title	Effective Date	Alternate Deviation	Variation Effective Date
52.204-7	System for Award Management-Registration. (Deviation)	2026-02		
52.212-1	Instructions to Offerors-Commercial Products and Commercial Services. (Deviation)	2026-02		

DFARS Provisions Incorporated by Reference

Number	Title	Effective Date	Alternate Deviation	Variation Effective Date
252.203-7005	Representation Relating to Compensation of Former DoD Officials.	2022-09		
252.204-7024	Notice on the Use of the Supplier Performance Risk System.	2023-03		
252.225-7055	Representation Regarding Business Operations with the Maduro Regime.	2022-05		
252.225-7059	Prohibition on Certain Procurements from the Xinjiang Uyghur Autonomous Region-Representation.	2023-06		

DFARS Provisions Incorporated by Full Text

Number	Title	Effective Date	Alternate Deviation	Variation Effective Date
252.204-7017	Prohibition on the Acquisition of Covered Defense Telecommunications Equipment or Services-Representation.	2021-05		

PROHIBITION ON THE ACQUISITION OF COVERED DEFENSE TELECOMMUNICATIONS EQUIPMENT OR SERVICES-REPRESENTATION (MAY 2021)

The Offeror is not required to complete the representation in this provision if the Offeror has represented in the provision at 252.204-7016, Covered Defense Telecommunications Equipment or Services-Representation, that it "does not provide covered defense telecommunications equipment or services as a part of its offered products or services to the Government in the performance of any contract, subcontract, or other contractual instrument."

(a) Definitions. "Covered defense telecommunications equipment or services," "covered mission," "critical technology," and "substantial or essential component," as used in this provision, have the meanings given in the 252.204-7018 clause, Prohibition on the Acquisition of Covered Defense Telecommunications Equipment or Services, of this solicitation.

(b) Prohibition. Section 1656 of the National Defense Authorization Act for Fiscal Year 2018 (Pub. L. 115-91) prohibits agencies from procuring or obtaining, or extending or renewing a contract to procure or obtain, any equipment, system, or service to carry out covered missions that uses covered defense telecommunications equipment or services as a substantial or essential component of any system, or as critical technology as part of any system.

(c) Procedures. The Offeror shall review the list of excluded parties in the System for Award Management (SAM) at <https://www.sam.gov> for entities that are excluded when providing any equipment, system, or service to carry out covered missions that uses covered defense telecommunications equipment or services as a substantial or essential component of any system, or as critical technology as part of any system, unless a waiver is granted.

(d) Representation. If in its annual representations and certifications in SAM the Offeror has represented in paragraph (c) of the provision at 252.204-7016, Covered Defense Telecommunications Equipment or Services-Representation, that it "does" provide covered defense telecommunications equipment or services as a part of its offered products or services to the Government in the performance of any contract, subcontract, or other contractual instrument, then the Offeror shall complete the following additional representation:

The Offeror represents that it ☐ will ☐ will not provide covered defense telecommunications equipment or services as a part of its offered products or services to DoD in the performance of any award resulting from this solicitation.

(e) Disclosures. If the Offeror has represented in paragraph (d) of this provision that it "will provide covered defense telecommunications equipment or services," the Offeror shall provide the following information as part of the offer:

(1) A description of all covered defense telecommunications equipment and services offered (include brand or manufacturer; product, such as model number, original equipment manufacturer (OEM) number, manufacturer part number, or wholesaler number; and item description, as applicable).

(2) An explanation of the proposed use of covered defense telecommunications equipment and services and any factors relevant to determining if such use would be permissible under the prohibition referenced in paragraph (b) of this provision.

(3) For services, the entity providing the covered defense telecommunications services (include entity name, unique entity identifier, and Commercial and Government Entity (CAGE) code, if known).

(4) For equipment, the entity that produced or provided the covered defense telecommunications equipment (include entity name, unique entity identifier, CAGE code, and whether the entity was the OEM or a distributor, if known).

(End of provision)

Evaluation - Commercial Products and Commercial Services

FAR Provisions Incorporated by Full Text

Number	Title	Effective Date	Alternate Deviation	Variation Effective Date
52.212-2	Evaluation-Commercial Products and Commercial Services. (Deviation)	2026-02		

Evaluation-Commercial Products and Commercial Services (Feb 2026) (Deviation)

(a) Evaluation factors. The Government will award a contract resulting from this solicitation to the responsible Offeror whose offer conforming to the solicitation will be most advantageous to the Government, price and other factors considered. The following factors will be used to evaluate offers:

[Insert evaluation factors in the relative order of importance. For requests for proposals, state: Evaluation factors other than price when combined are [significantly more important than price /approximately equal to price/significantly less important] than price. For invitations for bids, list only price and price-related factors.]

LPTA

(b) Options (if applicable). The Government will evaluate offers for award purposes by adding the total price for all options to the total price for the basic requirement. The Government may determine that an offer is unacceptable if the option prices are significantly unbalanced. The evaluation of options does not obligate the Government to exercise the option(s).

(c) Notice of award. A written notice of award or acceptance of an offer furnished to the successful Offeror within the time for acceptance specified in the offer, shall result in a binding contract without further action by either party. Before the offer's specified expiration time, the Government may accept an offer (or part of an offer), whether or not there are negotiations after its receipt, unless a written notice of withdrawal is received before award.

(End of provision)

Addendum to Solicitation Provisions

FAR Provisions Incorporated by Reference

Number	Title	Effective Date	Alternate Deviation	Variation Effective Date
52.203-11	Certification and Disclosure Regarding Payments to Influence Certain Federal Transactions.	2024-09		
52.203-18	Prohibition on Contracting with Entities that Require Certain Internal Confidentiality Agreements or Statements-Representation.	2017-01		
52.240-90	Security Prohibitions and Exclusions Representations and Certifications. (Deviation)	2026-02		

FAR Provisions Incorporated by Full Text

Number	Title	Effective Date	Alternate Deviation	Variation Effective Date
52.219-1	Small Business Program Representations. (Deviation)	2026-02		

Small Business Program Representations (Feb 2026) (Deviation)

(a) Definitions. As used in this provision-

Economically disadvantaged women-owned small business (EDWOSB) concern means a small business concern that is at least 51 percent directly and unconditionally owned by, and the management and daily business operations of which are controlled by, one or more women who are citizens of the United States and who are economically disadvantaged in accordance with 13 CFR part 127, and the concern is certified by SBA or an approved third-party certifier in accordance with 13 CFR 127.300. It automatically qualifies as a women-owned small business concern eligible under the WOSB Program.

HUBZone small business concern means a small business concern that meets the requirements described in 13 CFR 126.200, is certified by the Small Business Administration (SBA) and designated by SBA as a HUBZone small business concern in the Small Business Search (SBS) (13 CFR 126.103).

Service-disabled veteran-owned small business (SDVOSB) concern eligible under the SDVOSB Program means an SDVOSB concern that is designated in the System for Award Management (SAM) as certified by the Small Business Administration (SBA) in accordance with 13 CFR 128.300.

Small business concern-

(1) Means a concern, including its affiliates, that is independently owned and operated, not dominant in its field of operation, and qualified as a small business under the criteria in 13 CFR part 121 and the size standard in paragraph (b) of this provision.

(2) Affiliates, as used in this definition, means business concerns, one of whom directly or indirectly controls or has the power to control the others, or a third party or parties control or have the power to control the others. In determining whether affiliation exists, consideration is given to all appropriate factors including common ownership, common management, and contractual relationships. SBA determines affiliation based on the factors set forth at 13 CFR 121.103.

Small disadvantaged business concern means a small business concern that-

(1) Is at least 51 percent unconditionally and directly owned (as defined at 13 CFR 124.105) by one or more socially disadvantaged (as defined at 13 CFR 124.103) and economically disadvantaged (as defined at 13 CFR 124.104) individuals who are citizens of the United States, and

(2) The management and daily business operations of which are controlled (as defined at 13

CFR 124.106) by individuals who meet the criteria in paragraph (1) of this definition.

Women-owned small business (WOSB) concern eligible under the WOSB Program (in accordance with 13 CFR part 127) means a small business concern that is at least 51 percent directly and unconditionally owned by, and the management and daily business operations of which are controlled by, one or more women who are citizens of the United States, and the concern is certified by SBA or an approved third-party certifier in accordance with 13 CFR 127.300.

(b)

(1) The North American Industry Classification System (NAICS) code for this acquisition is 425830[insert NAICS code].

(2) The small business size standard is 500 employees[insert size standard].

(3) The small business size standard for a concern that submits an offer, other than on a construction or service acquisition, but proposes to furnish an end item that it did not itself manufacture, process, or produce (i.e., nonmanufacturer), is 500 employees, or 150 employees for information technology value-added resellers under NAICS code 541519, if the acquisition-

(i) Is set aside for small business and has a value above the simplified acquisition threshold;

(ii) Uses the HUBZone price evaluation preference regardless of dollar value, unless the offeror waives the price evaluation preference; or

(iii) Is an 8(a), HUBZone, service-disabled veteran-owned, economically disadvantaged women-owned, or women-owned small business set-aside or sole-source award regardless of dollar value.

(c) Representations.

(1) The offeror represents as part of its offer that-

(i) it [] is, [] is not a small business concern; or

(ii) It [] is, [] is not a small business joint venture that complies with the requirements of 13 CFR 121.103(h) and 13 CFR 125.8(a) and (b). [_____The offeror shall enter the name and unique entity identifier of each party to the joint venture: ____.]

(2) [Complete only if the offeror represented itself as a small business concern in paragraph (c) (1) of this provision.] The offeror represents that it ☐ is, ☐ is not a women-owned small disadvantage business concern.

(3) Women-owned small business (WOSB) joint venture eligible under the WOSB Program. The offeror represents as part of its offer that it ☐ is, ☐ is not a joint venture that complies with the requirements of 13 CFR 127.506(a) through (c). [____ The offeror shall enter the name and unique entity identifier of each party to the joint venture: ____.]

(4) Economically disadvantaged women-owned small business (EDWOSB) joint venture. The offeror represents as part of its offer that it ☐ is, ☐ is not a joint venture that complies with the requirements of 13 CFR 127.506(a) through (c). [____ The offeror shall enter the name and unique entity identifier of each party to the joint venture: ____.]

(5) SDVOSB joint venture eligible under the SDVOSB Program. [Complete only if the offeror is certified as a SDVOSB concern]. The offeror represents as part of its offer that it ☐ is, ☐ is not a SDVOSB joint venture eligible under the SDVOSB Program that complies with the requirements of 13 CFR 128.402. [____ The offeror shall enter the name and unique entity identifier of each party to the joint venture: ____.]

(6) HUBZone joint venture eligible under the HUBZone Program. [Complete only if the offeror is a HUBZone small business concern.] The offeror represents, as part of its offer, that it ☐ is, ☐ is not a HUBZone joint venture that complies with the requirements of 13 CFR 126.616(a) through (c). [____ The offeror shall enter the name and unique entity identifier of each party to the joint venture: ____.] Each HUBZone small business concern participating in the HUBZone joint venture must be certified as a HUBZone concern.

(d) Notice. Under 15 U.S.C. 645(d), any person who misrepresents a firm's status as a business concern that is small, HUBZone small, small disadvantaged, service-disabled veteran-owned small, economically disadvantaged women-owned small, or women-owned small eligible under the WOSB Program in order to obtain a contract to be awarded under the preference programs established pursuant to section 8, 9, 15, 31, and 36 of the Small Business Act or any other provision of Federal law that specifically references section 8(d) for a definition of program eligibility, will be-

(1) Punished by imposition of fine, imprisonment, or both;

(2) Subject to administrative remedies, including suspension and debarment; and

(3) Ineligible for participation in programs conducted under the authority of the Act.

(End of provision)

52.229-11	Tax on Certain Foreign Procurements-Notice and Representation.	2020-06
-----------	--	---------

Tax on Certain Foreign Procurements-Notice and Representation (Jun 2020)

(a) Definitions. As used in this provision-

Foreign person means any person other than a United States person.

Specified Federal procurement payment means any payment made pursuant to a contract with a foreign contracting party that is for goods, manufactured or produced, or services provided in a foreign country that is not a party to an international procurement agreement with the United States. For purposes of the prior sentence, a foreign country does not include an outlying area.

United States person as defined in 26 U.S.C. 7701(a)(30) means

(1) A citizen or resident of the United States;

(2) A domestic partnership;

(3) A domestic corporation;

(4) Any estate (other than a foreign estate, within the meaning of 26 U.S.C. 701(a)(31)); and

(5) Any trust if-

(i) A court within the United States is able to exercise primary supervision over the administration of the trust; and

(ii) One or more United States persons have the authority to control all substantial decisions of the trust.

(b) Unless exempted, there is a 2 percent tax of the amount of a specified Federal procurement payment on any foreign person receiving such payment. See 26 U.S.C. 5000C and its implementing regulations at 26 CFR 1.5000C-1 through 1.5000C-7.

(c) Exemptions from withholding under this provision are described at 26 CFR 1.5000C-1(d)(5) through (7). The Offeror would claim an exemption from the withholding by using the Department of the Treasury Internal Revenue Service Form W-14, Certificate of Foreign Contracting Party Receiving Federal Procurement Payments, available via the internet at www.irs.gov/w14. Any exemption claimed and self-certified on the IRS Form W-14 is subject to audit by the IRS. Any disputes regarding the imposition and collection of the 26 U.S.C. 5000C tax are adjudicated by the IRS as the 26 U.S.C. 5000C tax is a tax matter, not a contract issue. The IRS Form W-14 is provided to the acquiring agency rather than to the IRS.

(d) For purposes of withholding under 26 U.S.C. 5000C, the Offeror represents that

(1) It ☐ is ☐ is not a foreign person; and

(2) If the Offeror indicates "is" in paragraph (d)(1) of this provision, then the Offeror represents that-I am claiming on the IRS Form W-14 ☐ a full exemption, or ☐ partial or no exemption [Offeror shall select one] from the excise tax.

(e) If the Offeror represents it is a foreign person in paragraph (d)(1) of this provision, then-

(1) The clause at FAR 52.229-12, Tax on Certain Foreign Procurements, will be included in any resulting contract; and

(2) The Offeror shall submit with its offer the IRS Form W-14. If the IRS Form W-14 is not submitted with the offer, exemptions will not be applied to any resulting contract and the Government will withhold a full 2 percent of each payment.

(f) If the Offeror selects "is" in paragraph (d)(1) and "partial or no exemption" in paragraph (d)(2) of this provision, the Offeror will be subject to withholding in accordance with the clause at FAR 52.229-12, Tax on Certain Foreign Procurements, in any resulting contract.

(g) A taxpayer may, for a fee, seek advice from the Internal Revenue Service (IRS) as to the

proper tax treatment of a transaction. This is called a private letter ruling. Also, the IRS may publish a revenue ruling, which is an official interpretation by the IRS of the Internal Revenue Code, related statutes, tax treaties, and regulations. A revenue ruling is the conclusion of the IRS on how the law is applied to a specific set of facts. For questions relating to the interpretation of the IRS regulations go to <https://www.irs.gov/help/tax-law-questions>.

(End of provision)